

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 8, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook (arriving at 6:01 p.m.), Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #24 was removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. Segrave, item #29(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 21, 2023. Motion (per Consent Agenda) carried.

Expression of appreciation was made to Richard Johnson as President of the City Council for 2023.

Election of city council president for 2024. Dr. Rinne moved to nominate and elect Mr. Esquibel as city council president, seconded by Dr. Aldrich. Dr. Aldrich moved to cease nominations, seconded by Mr. White. Motion to cease nominations carried. Voting “yes” – all members of the governing body. Motion to elect Mr. Esquibel as city council president carried. Voting “yes” – all members of the governing body.

Election of city council vice-president for 2024. Mr. Roybal moved to nominate and elect Dr. Rinne as city council vice-president, seconded by Mr. Cook. Mr. Esquibel moved to cease nominations, seconded by Dr. Aldrich. Motion to cease nominations carried. Voting “yes” – all members of the governing body. Motion to elect Dr. Rinne as city council vice-president carried. Voting “yes” – all members of the governing body.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 9.39 acres of land at 5419 Ridge Road (located northeast of the intersection of Douglas St. and Ridge Rd.). Comment was made by the following member of the governing body: Mr. Roybal. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 29.61 acres of land east of Converse Avenue and south of Storey Boulevard. There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending subsection 6.7.5.b of the Unified Development Code (UDC), changing building façade design requirements to reduce required windows on urban loft multifamily residential and mixed-use residential development (Postponed from December 21, 2023). Reporting for Public Services Committee, Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Dr. Rinne moved to approve by substitute dated December 21, 2023, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Jason Stephen, Gateway Construction. Comment was made by the following member of the governing body: Dr. Aldrich. (#4538)

ORDINANCE –2nd READING – Amending Title 6, Animals, of the Municipal Code of the City of Cheyenne, Wyoming, regarding the registration, control, impoundment and general care of animals and birds within the city. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. White. Mr. Johnson moved to amend by substitute dated January 2, 2024, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” - all members of the governing body. Main motion as amended by substitute carried. Voting “yes”- all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comment was made by: Amber Ash, Director of Strategic Initiatives, Cheyenne Animal Shelter, Janet Stephens, Cheyenne Kennel Club, Kaitlyn Wilson and Tessha Winsch, Medical Director, Cheyenne Animal Shelter. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Mr. Laybourn and Dr. Rinne.

ORDINANCE –3rd READING – Amending Ordinance No. 4520 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2023-2024. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” - all members of the governing body. (#4539)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” -all members of the governing body. (#4540)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body. (#4541)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AR Agricultural Residential to LI Light Industrial for land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body. (#4542)

ORDINANCE – 3rd READING – Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body. (#4543)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of the intersection of Douglas Street and Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located northeast of the intersection of Douglas Street and Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of Converse Avenue and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural and LR Low-Density Residential for land annexed to the City of Cheyenne located east of Converse Avenue and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from AG Agricultural and LR Low-Density Residential to CB Community Business and MR Medium-Density Residential for land located east of Converse Avenue and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from NB Neighborhood Business to CB Community Business for land located southeast of and adjacent to the intersection of Dell Range Boulevard and Bluegrass Circle – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located north of and adjacent to Pershing Boulevard between McCann Avenue and College Drive – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing the Mayor to execute a Settlement Agreement with Rodney and Joyce Stone and Dean and Jayne Fertig to resolve a lawsuit regarding increased flooding following the development of the Thomas Heights Subdivision. Mr. White moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Laybourn. (#6381)

[CA] RESOLUTION – Certifying Planning Commission action amending the Future Land Use maps of PlanCheyenne changing the land use category from Urban Residential to Community Business for property generally located east of Converse Avenue and south of Storey Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] Human Services Agreement between the City of Cheyenne and United Way of Laramie County to provide funding to community agencies and monitor performance of community programs (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne, Laramie County, and United Way of Laramie County to create a Human Services Advisory Council and to coordinate and refine human services funding and delivery systems (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and Sunflower Ridge LC3 for the purchase of the BEAST Foundation Facility located at 2900 Sunflower Road, Cheyenne, Wyoming (General Fund Reserves) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7782 between the City of Cheyenne and DHM Design Corporation, for utility locating services for the Reed Avenue Rail Corridor Design Project (2017 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$39,640.00). (#7782)

[CA] Consideration of Bid #E-9-24 for the Cheyenne Civic Center LED Lighting Retrofit Equipment Project (General Fund and Energy Efficiency and Conservation Block Grant Program) – referred to Finance Committee.

[CA] Consideration of Bid #E-10-24 for two (2) five (5) deck rough mowers for the Community Recreation and Events Golf Division (Golf Facilities Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-24 for the City of Cheyenne Community Recreation and Events Gymnastics Facility (Real Property Revolving Fund, Ice & Events Center Fund, General Fund Reserves, and ARPA Grant) – referred to Finance Committee.

Request to extend the time period in which Wyoming Horse Racing LLC d/b/a Horse Palace has to become operational for an additional year for their retail license, located at 5640 High Plains Road, Cheyenne, Wyoming. Mr. White moved to approve, seconded by Mr. Roybal. Public comment was made by: Steve Jiminez, General Manager, Wyoming Horse Racing. Comments were made by the following members of the governing body: Dr. Aldrich and Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”.

Appointment of Scott Roybal to the Downtown Development Authority Board. Mr. Esquibel moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who didn’t vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Martin Luther King Jr. holiday on Monday, January 15, 2024, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, January 16, 2024 and Public Services Committee will meet at Noon on Wednesday, January 17, 2024. Both meetings will be held at 2101 O’Neil Avenue, Room 104 and via electronic conference meeting.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson and Mr. Laybourn.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:18 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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